

1.

CASE #	CASE NAME	HEARING NAME
CVPS2402121	CHROMIAK VS WILTSE	DEFENDANT SHERI LYNN WILTSE'S MOTION TO SET ASIDE DEFAULT AND/OR DEFAULT JUDGMENT

Tentative Ruling: Relief under C.C.P. §473.5 must be sought within a “reasonable time” and in no event later than two years after entry of default judgment or 180 days after service of written notice that default or default judgment has been entered, whichever comes first. (C.C.P. §473.5(a); *Trackman v. Kenney* (2010) 187 Cal.App.4th 175, 180.) The notice of motion must be accompanied by a declaration showing defendant’s lack of actual notice and that this lack of notice was not caused by his or her avoidance of service or inexcusable neglect. (C.C.P. §473.5(b); *Anastos v. Lee* (2004) 118 Cal.App.4th 1314, 1319.) The defendant must show that their lack of actual notice was not caused by inexcusable neglect or avoidance of service. (*Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077-1078.) The court is empowered to grant such relief “on whatever terms as may be just.” (C.C.P. §473.5(c).)

On April 10th, 2026 the parties were present and instructed to meet and confer regarding the trial, as well as a reminder that it was the court’s intention to start trial on Monday April 13th, and that Defendant Wiltse was to submit a trial binder to the court as she had failed to do so previously directed on March 13th. On April 13th Defendant requested accommodations that the court agreed to provide, but would require a continuance of the trial to fulfill those accommodations. Again it was noted that Defendant had failed to comply with Local Rule 3401 and submission of a trial binder. While the trial was continued to April 28th, an OSC was set for April 16th for Defendant to submit a binder in compliance with Local Rule 3401.

The court notes that Defendant in her motion submitted a letter dated 4.13.26 at 7:50 p.m. that is labelled “Leaving Hospital Against Medical Advice”. The name of the patient is not legible nor is that of the doctor. Regardless, on April 16th, the court continued the trial to 4.28.26, giving sufficient time for Defendant to submit proper copies of the trial binder. Only one binder was submitted on April 16th, additional copies were not yet produced for Plaintiff and court staff.

On April 28th, the court called the trial at 10:06 a.m., having waited for Ms. Wiltse or her accommodations assistant to appear. The court did note that a call was made to the court on the 27th indicating that Ms. Wiltse had a medical emergency the day before. Based on this information the court decided to vacate the trial (and not impose sanctions upon Defendant) with the understanding she was to either show up at the next court date or appear with proper documentation explaining her prior absence.

On May 12th, the trial was called promptly at 8:40 after the morning calendar was completed, without the presence of Defendant. Due to the lack of compliance with the court’s prior orders, her answer was stricken. Defendant appeared after trial call and was informed she was not permitted to address the court. Defendant appeared about 10 minutes after the case was called.

Only now has Defendant submitted paperwork to corroborate her admission to the hospital for the relevant period of April 28th. The document is titled “belongings tracking record”, listing Defendant as the patient, admitted on 4.26.26 and discharged on 4.29.26.

As referenced in Plaintiff’s opposition, CCP 473.5 is applicable to lack of actual notice of service of a summons. That is not the situation in this matter. However, Defendant in her motion references setting aside of the default for good cause to include

“taken by surprise, inadvertence, mistake or excusable neglect”. This language is taken from CCP 473(b) which permits the court to provide discretionary relief. Discretionary relief is available not just from defaults, default judgments, and dismissals, but may also be to any order or “other proceeding” taken against the party. (C.C.P. §473(b); *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 254.) The failure of a party to meet a procedural deadline which results in default or dismissal may be the proper subject for relief section 473 (*Lee v. Wells Fargo Bank, N.A.* (2001) 88 Cal.App.4th 1187, 1193) but not when the default or dismissal was the result of a lapse of the statute of limitations, a failure to serve a complaint in a timely manner, failure to prosecute, or failure to amend a complaint (*Pagnini v. Union Bank, N.A.* (2018) 28 Cal.App.5th 298, 303-304).

The court is empowered to relieve a party “upon any terms as may be just ... from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect.” (C.C.P. §473(b).) Because the law favors judgments on the merits, “doubts must be resolved in favor of relief...” (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.) If the party in default moves promptly for relief and no prejudice to the opposing party will result from setting aside the default, only “very slight evidence will be required to justify a court in setting aside the default” (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 233 [quoting *Berri v. Rogero* (1914) 168 Cal. 736, 740].)

Defendant showed that the certificate of mailing listed the city for Defendant as La Quinta, not Cathedral City, which is the city she has listed on her moving papers. It should be noted that on all of the court’s mailings to Defendant, La Quinta has been listed as the city, going back to June of 2024. Regardless, Defendant admits in her moving papers she was aware of the May 12th court date on May 8th. Factoring in the Defendant submitted some paperwork to possibly account for her absence on April 28th, the court still considers that her pattern of being unprepared, not fully complying with the court’s Local Rule 3401, or in the last instance, being late and failing to communicate with the court, does not fall under mistake or excusable neglect and therefore does not merit discretionary relief.

Motion to Set Aside Default DENIED.

OSC re default is vacated.

An OSC re default judgment is set for 12.01.26.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2602233	LARI VS STATE FARM GENERAL INSURANCE CO.	PETITION RE: ARBITRATION AWARD

Tentative Ruling: No tentative ruling, the hearing is continued to August 3rd. Court Reporter is approved for that date.